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Case Name: *Stonecrest Acquisitions, LLC v. David Schultz, et al.*

Case No.: 25CV477456

Before the Court is Defendant David Schultz's ("Defendant" or "Mr. Schultz") demurrer to the Complaint filed by Plaintiff Stonecrest Acquisitions, LLC ("Plaintiff" or "Stonecrest").

This is an action for breach of contract. According to the allegations of the Complaint, on July 7, 2025, Plaintiff and Defendant entered into a "Property Purchase and Sale Agreement" (the "Agreement") pursuant to which Defendant agreed to sell his interest in real property located at 5324 Borneo Circle in San Jose to Plaintiff for \$360,000. (Complaint, ¶¶ 2, 7, 8.) Escrow was to be opened within three days of the execution of the Agreement, however, Mr. Schultz and co-defendant Sandra Lynn Hammack ("Ms. Hammack") allegedly conspired to interfere with the sale and took actions to prevent the close of escrow. (*Id.*, ¶ 9.)

On August 6, 2025, Mr. Schultz's Homeowners Association ("HOA") received a payoff demand for full payment for the outstanding balance on the HOA collection amount, but Ms. Hammack took deliberate steps to prevent the HOA from satisfying that demand. (Complaint, ¶ 10.)

Based on the foregoing, Plaintiffs initiated this action with the filing of the Complaint on October 13, 2025, asserting claims for: (1) breach of contract (against Mr. Schultz); (2) intentional interference with contractual relations (against Ms. Hammack); (3) negligent interference with contractual relations (against Ms. Hammack); and (4) conspiracy (against all defendants). Defendant demurs to the first cause of action on the ground of failure to state facts sufficient to constitute a cause of action and uncertainty and demurs to the fourth cause of action on the ground of uncertainty. (Code Civ. Proc., § 430.10, subds. (e) and (f). Plaintiff opposes the motion.

Defendant's demurrer to the first and fourth causes of action on the ground of uncertainty is **OVERRULED**. "A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made." (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.) Such a demurer "is strictly construed even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) To avoid a demurrer for uncertainty, a pleading merely needs to "set forth the essential facts of [the] case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of [the] cause of action." (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719, internal citations and quotations omitted.) Thus, a demurer for uncertainty "should not be sustained if the allegations are sufficiently clear to apprise the defendant of the issues that must be met, even if the allegations of the complaint may not be as clear and as detailed as might be desired." (*Merlino v. West Coast Macaroni Mfg. Co.* (1956) 90 Cal.App.2d 106, 108.) The first and fourth causes of action are both sufficient clearly to apprise Defendant of the nature of each claim, far from "ambiguous" as he claims, and any specific uncertainties can be clarified in discovery.

Defendant maintains Plaintiff fails to state a claim for breach of contract because (1) Plaintiff fails to allege that it was ready, willing and able to perform as of the date required by the Agreement and (2) Plaintiff fails to state a claim for specific performance because it does not allege that damages are an inadequate remedy at law. None of the contentions are persuasive.

First, the first cause of action is not explicitly pleaded as a claim for specific performance, but rather merely breach of contract. While Plaintiff does pray for a judgment of specific performance at the conclusion of the Complaint, to the extent Defendant believes that Plaintiff has not pleaded entitlement to such relief the proper mechanism to raise that issue is a motion to strike and not a demurrer. Further, even if Defendant had properly challenged the relief requested, the Court is not persuaded that his argument would be meritorious. While it is generally the case that specific performance requires that the plaintiff not have an adequate remedy at law (see *Blackburn v. Charnley* (2004) 117 Cal.App.4th 758, 766), as Plaintiff notes, there is presumption “that the breach of any agreement to transfer real property cannot be adequately compensated for by money damages” (*BD Inns v. Pooley* (1990) 218 Cal.App.3d 289; see also Civ. Code, § 3387).

Second, none of the authorities cited by Defendant provide that a plaintiff claiming anticipatory breach of contract- as Plaintiff does here- must expressly allege that he was ready, willing and able to perform as required by the contract. Instead, these authorities pertain to the *evidentiary* burden of such a plaintiff at trial or summary judgment. (See *Ersa Grae Corp. v. Fluor Corp.* (1991) 1 Cal.App.4th 613, 616; see also *County of Solano v. Vallejo Redevelopment Agency* (1999) 75 Cal.App.4th 1262, 1273.) Defendant otherwise fails to substantiate his argument that a specific allegation regarding Plaintiff’s ability to perform is required at the pleading stage. In accordance with the foregoing, Defendant’s demurrer to the first cause of action on the ground of failure to state facts sufficient to constitute a cause of action is OVERRULED.

The Court will prepare the final order.

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Calendar Line 3

Case Name: *Salvatore Bonina v. Breakthrough Physical Therapy, Inc. et. al*

Case No.: 24CV435105

Before the Court is Breakthrough Physical Therapy, Inc. (“Breakthrough”) and Eri Matsushita (“Matsushita”) (together, “Defendants”) motion for summary judgment, or, in the alternative, summary adjudication, as to the second amended complaint (“SAC”) filed by Plaintiff Salvatore Bonina (“Bonina”).

I. BACKGROUND

According to the allegations of the SAC, in 2020 Bonina sought physical therapy treatment with Breakthrough and Matsushita at Breakthrough’s office in Sunnyvale, California. (SAC, ¶ 11.) During a visit to Breakthrough’s office in August or September 2020, Matsushita informed Bonina that she was going to perform a manipulation to Bonina’s neck. (*Id.* at ¶ 12.) Matsushita informed Bonina that she was not supposed to perform these types of manipulations, but she knew how to perform them based on her experience with a prior employer. (*Ibid.*) Matsushita was not authorized to perform such manipulations. (*Ibid.*) Matsushita cradled Bonina’s head and neck in her hands while Bonina lay facing upwards on his back on a treatment table. (*Ibid.*) Matsushita did not advise Bonina to relax his neck and, while Bonina’s neck muscles were tense and contracted, Matsushita suddenly and violently twisted Bonina’s head and neck to the side causing Bonina immediate and extraordinary pain (the “Subject Incident”). (*Ibid.*)

Following that visit, Bonina returned to Breakthrough on multiple occasions. (SAC, ¶ 20.) After that series of physical therapy concluded in 2021, Bonina returned to Breakthrough in 2022 for approximately fourteen additional visits, as well as another eighteen additional visits in 2023. (*Ibid.*)

Months after the Subject Incident, in February 2021, Bonina began experiencing fainting episodes in which he would lose consciousness and fall to the ground. (SAC, ¶ 22.) In May 2023, Bonina’s healthcare providers informed him that his left vertebral artery was significantly compressing his medulla and that this compression was the cause of these episodes. (*Id.* at ¶ 30.) On or around August 28, 2023, Dr. Gary K. Steinberg (“Steinberg”) informed Bonina that this “significant compression” was caused by the Subject Incident. (*Id.* at ¶ 31.)

On April 11, 2024, Bonina filed the initial complaint in this matter. In March 2025, Bonina filed the SAC, alleging three causes of action for: (1) negligence; (2) battery; and (3) medical malpractice. The SAC alleges negligence and battery against Breakthrough and Matsushita. The SAC alleges medical malpractice against other defendants in this matter. In February 2026, Breakthrough and Matsushita moved for summary judgment on the grounds that they did not breach any applicable standard of care and they did not proximately cause or contribute to Bonina’s injuries. (Defendants’ Notice of Summary Judgment, p. 2:1-4.) In the alternative, Breakthrough and Matsushita moved for summary adjudication on the grounds that the applicable statute of limitations bars the SAC and the SAC’s second cause of action for battery fails for several reasons. (*Id.* at p. 2:11-25.)